



CHAPTER vii.

An Act to amend the Glasgow Building Regulations Act 1900. A.D. 1908.
[18th June 1908.]

WHEREAS by the Glasgow Building Regulations Act 1900 (herein-after called "the Act of 1900") it is provided that a register should be prepared of public streets in the city and royal burgh of Glasgow (herein-after called "the register" and "the city" respectively):

And whereas the register was accordingly prepared and intimation thereof was made as provided in the said Act:

And whereas numerous appeals to the sheriff were taken under the provisions in the Act of 1900 against entries in the register:

And whereas the said appeals have not yet been disposed of but were held over until certain actions in the courts of law had been decided:

And whereas in the said actions the courts of law have determined that on a sound construction of the provisions in the Act of 1900 relating to the register the actual widths of such streets fall to be inserted in the register and marked on the map referred to in such provisions:

And whereas owing to the great number of such streets in the city and the numerous variations of widths therein it is impossible to give effect to the said decisions except at great and unnecessary labour and expense and it is expedient that provision should be made to meet the difficulties thence arising:

And whereas it is expedient that the provisions of the Act of 1900 with respect to the register and map should be repealed and that new provisions should be made in reference to the register and the said appeals as by this Act provided:

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And whereas it is expedient that other provisions of the Act of 1900 should be amended as by this Act provided :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title
and cita-
tions.

1.—(1) This Act may be cited as the Glasgow Corporation Act 1908 and this Act and the Glasgow Building Regulations Act 1900 (herein-after called “the Act of 1900”) may be cited together as the Glasgow Building Regulations Acts 1900 and 1908.

(2) This Act and the Glasgow Corporation Acts 1855 to 1907 may be cited together as the Glasgow Corporation Acts 1855 to 1908.

(3) This Act and the Glasgow Police Acts 1866 to 1907 may be cited together as the Glasgow Police Acts 1866 to 1908.

Interpreta-
tion.

2. In this Act the several words and expressions to which meanings are assigned by the Act of 1900 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Repeal of
existing
provisions.

3. The following provisions of the Act of 1900 are hereby repealed (that is to say) :—

(A) Section 9 (Register of public streets—Register and map of streets—Appointment of registrar—Registrar to make entries in register from time to time as directed by dean of guild or Corporation—Removal from register of street ceasing to exist—Repeal of sections 281 and 282 of Act of 1866) ;

(B) Section 10 (Re-naming of streets) ;

(c) Section 20 (Restraining erections within certain distance in streets) ; and

(D) Section 21 (Appeal as to width and centre of streets) ; and the Act of 1900 shall be read and construed as if the following provisions were inserted therein as sections 9 and 10 thereof respectively (that is to say) :—

“9.—(1) Register of streets—The Corporation shall as soon as conveniently may be cause a register (herein-after called “the

register”) to be prepared of all the public streets in the city in which shall be entered the following particulars and no others (except as herein-after provided for in this Act) of each such street (that is to say):—

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(A) the name of the street; and

(B) the point of commencement and termination of the street.

“(2) Register open to inspection—The register shall there-upon be placed in the office of the town clerk of the city and shall remain open for inspection by all persons interested for a period of two months from the date of the first publication of the notice herein-after provided for in this section.

“(3) Public notice of register—The Corporation shall insert a notice at least once a week for three successive weeks in two or more daily newspapers published in the city intimating—

(A) that the register has been prepared;

(B) the time and place where the register may be inspected;

(C) that any person who may be dissatisfied with any entry in the register or omission therefrom may within the said period of two months appeal to the sheriff as is herein-after provided for in this section; and

(D) that the register shall be deemed at the expiry of the said period of two months to fix conclusively the particulars as aforesaid of every public street unless in so far as the same may be altered on appeal or as is herein-after provided for in this Act.

“(4) Notice to owners—The Corporation shall within one month from the date of the first publication of the said notice cause a copy thereof to be sent by registered post to every owner of lands and heritages appearing in the valuation roll of the city at the address as given in such roll.

“(5) Appeal to sheriff—Any owner who may be aggrieved by any entry in the register or omission therefrom may within the said period of two months appeal to the sheriff.

“(6) Sheriff’s decision final—The sheriff shall after the expiry of the said period of two months deal with any such appeal in a summary manner and may order any entry in the register to be deleted corrected or altered or order the name and the point of commencement and termination of any public street omitted from the register to be inserted therein all as he shall think fit and his decision shall be final.

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“(7) Rectification of register—Where any such appeal is taken or where before the sheriff has disposed of the appeals by owners under subsection (5) (Appeal to sheriff) of this section any representation is made to the Corporation by the master of works or by any owner with regard to any entry in the register or omission therefrom the Corporation may apply to the sheriff to make in the register such deletion correction alteration or addition as may be necessary in the circumstances and the sheriff may after such advertisement and other intimation to any person interested as he may deem proper make such deletion correction alteration or addition and his decision shall be final.

“(8) Register to come into force—The register after effect has been given to any deletion correction alteration or addition that may be made therein by the sheriff shall be printed with each of the entries therein numbered consecutively and a print thereof shall be docqueted by the sheriff which print so docqueted shall be deemed to be the register of public streets under this Act and shall thereupon come into force and shall fix conclusively the particulars of the streets therein entered.

“(9) Repeal of part of Act of 1866—When the register comes into force—

(A) the register of public streets kept under the Act of 1866 shall thereupon be superseded and shall be handed over by the registrar appointed under that Act to the custody of the registrar to be appointed under this Act;

(B) section 281 (Register of public streets) and section 282 (Registrar to make entries in register from time to time as directed by dean of guild or magistrates and council) of the Act of 1866 shall thereupon be repealed.

“(10) Appointment of registrar—The Corporation shall appoint such person as they may think proper to keep the register and such person shall be called the registrar of public streets and the word ‘register’ in this Act shall mean the person so appointed.

“(11) Registrar to receive register—When the register comes into force it shall be deposited with the registrar and shall at all reasonable times be open for inspection by any person who may take copies thereof or extracts therefrom without paying anything for the same.

“(12) Alterations on register—If at any time after the register comes into force the Corporation on the representation of the master of works or of any owner are satisfied that in consequence of any error or omission the register requires in any particular to be corrected altered or added to the Corporation may make application to the sheriff for authority to the registrar to make such deletion correction alteration or addition as may be necessary in the circumstances and the sheriff may after such advertisement and other intimation to any person interested as he may deem proper order such deletion correction alteration or addition to be made and his decision shall be final and such deletion correction alteration or addition shall be made in terms of the order of the sheriff by the registrar and the register so corrected altered or added to shall fix conclusively the particulars of the streets to which such deletion correction alteration or addition relate. A.D. 1908.

“(13) Subsequent entries in register—The registrar shall enter in the register the name and the point of commencement and termination of any street which after the register comes into force is by a decree of the dean of guild declared to be a public street or is in terms of section 12 (Private street or court may be taken over by Corporation on application of proprietors) of this Act taken over by a minute of the Corporation as a public street and the registrar shall also enter in the register the date of such decree or minute as the case may be and such entries shall be distinct from the original entries in the register.

“(14) Removal of street from register—Where any public street or any part thereof has—

- (A) from any reason ceased to exist as a public street the registrar shall on a resolution of the Corporation to that effect enter in the register the terms of such resolution with the date thereof; or
- (B) by a resolution of the Corporation been declared to be part of another public street and under such resolution has received the name of that other public street the registrar shall enter in the register the terms of such resolution with the date thereof.

“(15) Copies of entries—A copy certified by the registrar of any entry in the register shall be furnished by the registrar to any applicant on payment of a fee at the rate of one penny for each entry in such copy but no fee shall be less than one shilling and any such copy shall be received as evidence of such entry in all courts of law.

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“10. Re-naming of streets — Notwithstanding anything to the contrary contained in section 296 (Power to magistrates and council to name streets and courts) of the Act of 1866 the Corporation may as and when they consider necessary and after notice in two or more daily newspapers published in the city alter by a resolution the name of any street or court and the registrar shall if the street be a public street enter in the register the terms of such resolution with the date thereof.”

Saving
proceedings
already
taken.

4.—(1) The notices inserted in the newspapers intimating that the register had been prepared and was ready for inspection and also the notices sent to owners under and by virtue of the said section 9 of the Act of 1900 which is by this Act repealed (herein-after called “the repealed section”) shall be deemed to have been so inserted and sent under the section which by this Act is substituted therefor (herein-after called “the substituted section”) and any other thing done under and by virtue of the repealed section shall so far as it could have been done be deemed to have been done under the substituted section.

(2) The Corporation shall as soon as conveniently may be cause a notice to be inserted at least once a week for three successive weeks in two or more daily newspapers published in the city intimating that any owner who may be aggrieved by any entry in the register or omission therefrom and who has not already done so under the repealed section may within two months from the date of the first publication of such notice appeal to the sheriff which appeal such owner is hereby empowered to make subject always to the same procedure as an appeal under the repealed section.

Sheriff to
alter register.

5. The sheriff shall cause to be deleted from the register of public streets prepared under the repealed section (which register as so altered shall be deemed to be the register prepared under the substituted section) the explanatory notes at the beginning of the register and all particulars other than those required by the substituted section to be entered in the register including in such deletion the entries in the register in the columns with the following headlines (that is to say):—

- (A) Number or mark on map;
- (B) Width of street;
- (C) Distance between centre of street and building line;
- (D) Character of street; and
- (E) Other particulars.

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6. Any appeal which has been taken under the repealed section shall be deemed to be an appeal taken under the substituted section.

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Appeals under
repealed
section.

7. Nothing in this Act contained shall prejudice the rights and pleas of any parties interested in respect of any appeal which has been taken under the repealed section.

Saving of
pleas of
parties.

8. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall within five years from the passing of this Act be paid by the Corporation out of the assessments they are authorised to raise for the maintenance and repair of streets and roads.

Expenses of
Act.

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